

FILED

Mar 24, 2026

7:40 am

U.S. EPA REGION 5
HEARING CLERK

**UNITED STATES ENVIRONMENTAL PROTECTION AGENCY
REGION 5**

In the Matter of:	)	Docket No. RCRA-05-2026-0013
	)	
Veolia ES Technical Solutions, LLC	)	Proceeding to Commence and Conclude
Port Washington, Wisconsin,	)	an Action to Assess a Civil Penalty
	)	Under Section 3008(a) of the Resource
	)	Conservation and Recovery Act,
Respondent.	)	42 U.S.C. § 6928(a)
	)	

Consent Agreement and Final Order

Preliminary Statement

1. This is an administrative action commenced and concluded under Section 3008(a) of the Solid Waste Disposal Act, as amended, also known as the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. § 6928(a), and Sections 22.13(b) and 22.18(b)(2) and (3) of the Consolidated Rules of Practice Governing the Administrative Assessment of Civil Penalties and the Revocation/Termination or Suspension of Permits (Consolidated Rules) as codified at 40 C.F.R. Part 22.

2. The Complainant is the Director of the Enforcement and Compliance Assurance Division, United States Environmental Protection Agency (U.S. EPA), Region 5.

3. Respondent is Veolia ES Technical Solutions, LLC (Respondent), a limited liability company doing business in the State of Wisconsin.

4. Where the parties agree to settle one or more causes of action before the filing of a complaint, the administrative action may be commenced and concluded simultaneously by the issuance of a consent agreement and final order (CAFO). 40 C.F.R. § 22.13(b).

5. The parties agree that settling this action without the filing of a complaint or the adjudication of any issue of fact or law is in their interest and in the public interest.

6. Respondent consents to the assessment of the civil penalty specified in this CAFO, and to the terms of this CAFO.

7. U.S. EPA provided notice of commencement of this action to the State of Wisconsin pursuant to Section 3008(a)(2) of RCRA, 42 U.S.C. § 6928(a)(2).

Jurisdiction and Waiver of Right to Hearing

8. Jurisdiction for this action is conferred upon U.S. EPA pursuant to Sections 3006 and 3008 of RCRA, 42 U.S.C. §§ 6926 and 6928.

9. Respondent admits the jurisdictional allegations in this CAFO and neither admits nor denies the factual allegations in this CAFO.

10. Respondent waives its right to request a hearing as provided at 40 C.F.R. § 22.15(c), any right to contest the allegations in this CAFO, and its right to appeal this CAFO. Respondent waives any rights or defenses that Respondent has or may have for this matter to be resolved in federal court, including but not limited to any right to a jury trial, and waives any right to challenge the lawfulness of the final order accompanying the consent agreement.

Statutory and Regulatory Background

11. U.S. EPA has promulgated regulations, codified at 40 C.F.R. Parts 260 through 279, governing generators and transporters of hazardous waste and facilities that treat, store, and dispose of hazardous waste, pursuant to Sections 3001 – 3007, and 3013, among others, of RCRA, 42 U.S.C. §§ 6921 – 6927, and 6934.

12. Pursuant to Section 3006 of RCRA, 42 U.S.C. § 6926, the Administrator of U.S. EPA may authorize a state to administer the RCRA hazardous waste program in lieu of the federal RCRA hazardous waste program when the Administrator finds that the state program meets certain conditions.

13. Any violation of regulations promulgated pursuant to Sections 3001-3023 of RCRA, 42 U.S.C. §§ 6921-6939e, or of any state provision authorized pursuant to Section 3006 of RCRA, constitutes a violation of RCRA, subject to the assessment of civil penalties and issuance of compliance orders as provided in Section 3008 of RCRA, 42 U.S.C. § 6928.

14. Pursuant to Section 3006(b) of RCRA, 42 U.S.C. § 6926(b), the Administrator of U.S. EPA granted the State of Wisconsin final authorization to administer a state hazardous waste program in lieu of the federal government's base RCRA program effective January 31, 1986. *See* 51 Fed. Reg. 3783 (January 31, 1986). U.S. EPA subsequently authorized revisions and updates to Wisconsin's RCRA hazardous waste program on May 23, 1989, effective June 6, 1989 (54 Fed. Reg. 22278); on November 22, 1989, effective January 22, 1990 (54 Fed. Reg. 48243); on April 24, 1992, effective April 24, 1992 (57 Fed. Reg. 15029); on June 2, 1993, effective August 2, 1993 (58 Fed. Reg. 31344); on August 5, 1994, effective October 4, 1994 (59 Fed. Reg. 39971); on August 5, 1999, effective October 4, 1999 (64 Fed. Reg. 42630); on June 26, 2002, effective June 26, 2002 (67 Fed. Reg. 43027); on April 15, 2009, effective on the same date (74 Fed. Reg. 17423), and on April 17, 2009, effective on the same date (74 Fed. Reg. 17785).¹

¹ Effective September 1, 2020, the State of Wisconsin promulgated revised regulations which have not yet been authorized by U.S. EPA. U.S. EPA authorized the 2006 edition of Wisconsin's hazardous waste regulations which

15. Pursuant to Section 3008(a) of RCRA, 42 U.S.C. § 6928(a), U.S. EPA may issue an order assessing a civil penalty for any past or current violation of RCRA, requiring compliance immediately or within a specified period of time, or both. Pursuant to Section 3008(a) of RCRA, 42 U.S.C. § 6928(a), and 40 C.F.R. Part 19, U.S. EPA may assess a civil penalty of up to \$124,426 per day for each violation of Subtitle C of RCRA, 42 U.S.C. §§ 6901, *et seq.*, that occurred after November 2, 2015.

Factual Allegations and Alleged Violations

16. Respondent is a “person,” as defined by Wisconsin Administrative Code (NR) 660.10(90), 40 C.F.R. § 260.10, and Section 1004(15) of RCRA, 42 U.S.C. § 6903(15).

17. Respondent is the “owner” or “operator,” as those terms are defined under NR 660.10(87), 660.10(88), and 40 C.F.R. § 260.10, of a facility located at 1275 Mineral Springs Drive, Port Washington, Wisconsin (Facility).

18. At all times relevant to this CAFO, Respondent’s Facility consisted of land and structures, other appurtenances, and improvements on the land used for treating, storing, or disposing of hazardous waste.

19. Respondent’s Facility is a “facility” as that term is defined under NR 660.10(43) and 40 C.F.R. § 260.10.

20. On September 4, 2015, the Wisconsin Department of Natural Resources (WDNR) renewed Respondent’s State of Wisconsin hazardous waste licenses numbers 4584 and 6008 with a Final Determination Feasibility and Plan of Operation Report.

included W.A.C. NR § (NR) 662.034 (2006), which remains the U.S. EPA-authorized accumulation provision in Wisconsin for persons who are Large Quantity Generators as defined at NR 660.10(70m).

21. WDNR issued approvals to Respondent for a Class 1.1 License Modification on June 23, 2020 and a Class 2 License Modification on February 3, 2022.

22. “Conditions of Approval, Containers 29,” in Respondent’s State of Wisconsin License Number 6008, requires Respondent to “store waste in a structurally sound (undamaged) United States Department of Transportation (DOT) approved containers.”

23. “Conditions of Approval, Containers 37,” in Respondent’s State of Wisconsin License Number 6008, requires Respondent to ensure containers are “covered/closed except when adding or removing wastes.”

24. “Conditions of Approval, Routine Mercury Monitoring 66,” of Respondent’s State of Wisconsin License Number 4585, requires Respondent to collect an annual sample from the stormwater in the retention basin on its property and test it for mercury.

25. “Conditions of Approval, Waste Analysis 73” of Respondent’s State of Wisconsin License Number 6008, requires Respondent to “. . . analyze each waste stream in accordance with the waste analysis procedures set forth in the waste analysis plan listed in section 6 of the [Feasibility and Plan of Operation Report (FPOR)].”

26. At all times relevant to this CAFO, Respondent accepted from various sources, consolidated, temporarily stored, and treated hazardous wastes and universal waste.

27. At all times relevant to this CAFO, Respondent stored the hazardous wastes Respondent accepted as a licensed treatment storage and disposal facility (TSDF) in various size containers in licensed accumulation areas.

28. At all times relevant to this CAFO, Respondent held mercury containing hazardous and universal wastes, which were discarded materials. for temporary periods in containers before Respondent treated the materials in onsite retort furnaces.

29. At all times relevant to this CAFO, Respondent held a variety of hazardous wastes, which were discarded materials, for temporary periods in containers before Respondent shipped the materials from the Facility for treatment, storage, disposal, burning or incineration elsewhere.

30. Respondent stored, transported, disposed of, or otherwise handled a variety of hazardous wastes in “containers,” as that term is defined under NR 660.10(14) and 40 C.F.R. § 260.10.

31. At all times relevant to this CAFO, Respondent’s hazardous wastes were “solid wastes,” as that term is defined under NR 661.02 and 40 C.F.R. § 261.2.

32. At all times relevant to this CAFO, Respondent’s hazardous wastes were “hazardous wastes,” as that term is defined under NR 661.03 and 40 C.F.R. § 261.3.

33. At all times relevant to this CAFO, Respondent’s holding of a variety of hazardous wastes in containers constituted hazardous waste “storage,” as that term is defined under NR 660.10(112) and 40 C.F.R. § 260.10.

34. At all times relevant to this CAFO, Respondent’s treating of mercury containing hazardous and universal waste in retort furnaces constituted hazardous waste “treatment” as that term is defined in NR 660.10(127) and 40 C.F.R. § 260.10.

Mercury Retorted Waste

35. At all times relevant to this CAFO, Respondent conducted mercury retort operations which generated retorted sludge that Respondent collected in 55-gallon drums and stored in the 90-day accumulation area at the Facility.

36. At all times relevant to this CAFO, Respondent held retorted sludge, a discarded material, for temporary periods in containers before shipping the material from the Facility for treatment, storage, disposal, burning or incineration elsewhere.

37. Respondent stored, transported, disposed of, or otherwise handled its retorted sludge in “containers,” as that term is defined under NR 660.10(14) and 40 C.F.R. § 260.10.

38. Respondent characterized its retorted sludge as a characteristic hazardous waste with hazardous waste codes D004, D005, and D006.

39. At all times relevant to this CAFO, Respondent’s retorted sludge was a “solid waste,” as that term is defined under NR 661.02 and 40 C.F.R. § 261.2.

40. At all times relevant to this CAFO, Respondent’s retorted sludge was a “hazardous waste,” as that term is defined under NR 661.03 and 40 C.F.R. § 261.3.

41. At all times relevant to this CAFO, Respondent’s holding of retorted sludge in containers constituted hazardous waste “storage,” as that term is defined under NR 660.10(112) and 40 C.F.R. § 260.10.

PCB Waste

42. At all times relevant to this CAFO, Respondent accepted polychlorinated biphenyl (PCB) waste as a licensed TSDF facility, which Respondent stored in various size containers in licensed accumulation areas at the Facility.

43. At all times relevant to this CAFO, Respondent held PCB waste, a discarded material, for temporary periods in containers before the material was shipped from the Facility for treatment, storage, disposal, burning or incineration elsewhere.

44. Respondent stored, transported, disposed of, or otherwise handled its PCB waste in “containers,” as that term is defined under NR 660.10(14) and 40 C.F.R. § 260.10.

45. Respondent characterized the PCB waste as a hazardous waste with hazardous waste code D001.

46. At all times relevant to this CAFO, Respondent’s PCB waste was a “solid waste,” as that term is defined under NR 661.02 and 40 C.F.R. § 261.2.

47. At all times relevant to this CAFO, Respondent’s PCB waste was a “hazardous waste” as that term is defined under NR 661.03 and 40 C.F.R. § 261.3.

48. At all times relevant to this CAFO, Respondent’s holding of PCB waste in containers constituted hazardous waste “storage,” as that term is defined under NR 660.10(112) and 40 C.F.R. § 260.10.

Laboratory Waste

49. In addition to being a TSDF Facility, Respondent is a “generator,” as that term is defined in NR 660.10(50) and 40 C.F.R. § 260.10.

50. The Facility generated and managed hazardous waste after November 19, 1980.

51. At all times relevant to this CAFO, Respondent operated an on-site laboratory which generated laboratory waste that was collected in a small container and stored in a satellite accumulation area.

52. At all times relevant to this CAFO, Respondent held laboratory waste, a discarded material that it generated, for temporary periods in containers before shipping the material from the Facility for treatment, storage, disposal, burning or incineration elsewhere.

53. At all times relevant to this CAFO, Respondent stored, transported, disposed of, or otherwise handled laboratory waste in “containers,” as that term is defined under NR 660.10(14) and 40 C.F.R. § 260.10.

54. At all times relevant to this CAFO, Respondent’s laboratory waste was a “solid waste,” as that term is defined under NR 661.02 and 40 C.F.R. § 261.2.

55. At all times relevant to this CAFO, Respondent’s laboratory waste was a “hazardous waste” as that term is defined under NR 661.03 and 40 C.F.R. § 261.3.

56. At all times relevant to this CAFO, Respondent’s holding of laboratory waste in containers constituted hazardous waste “storage,” as that term is defined under NR 660.10(112) and 40 C.F.R. § 260.10.

U.S. EPA Investigation

57. On December 5 - 6, 2023, U.S. EPA conducted a Compliance Evaluation Inspection of the Facility (the Inspection).

58. On August 9, 2024, U.S. EPA issued a Notice of Violation to Respondent alleging certain violations of RCRA discovered during the inspection.

59. On September 9, 2024, Respondent submitted to U.S. EPA a written response to the Notice of Violation.

Respondent's Hazardous Waste Status

60. At all times relevant to this CAFO, Respondent did not have interim status for the treatment, storage, or disposal of hazardous waste at its Facility.

61. On or about March 1, 1992, Respondent submitted a Hazardous Waste Notification to U.S. EPA for the Facility.

62. Respondent's Hazardous Waste Notification indicates that Respondent is a Large Quantity Generator.

63. At all times relevant to this CAFO, Respondent generated more than 1000 kg of hazardous waste at the Facility during each calendar month.

64. At all times relevant to this CAFO, Respondent was a Large Quantity Generator, as defined by NR 660.10(70m), and as calculated by NR 662.13.

Count 1: Failure to Mark Start Date of Accumulation on 90-day Containers

65. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

66. Pursuant to 3005(a) of RCRA, 42 U.S.C. § 6925(a), U.S. EPA promulgated the Hazardous Waste Permit Program Regulations set forth at 40 C.F.R. Part 270 *et seq.*

67. Subject to certain exemptions set forth at NR 670.001(3)(b) and (c), and 40 C.F.R. § 270.1(c)(2) and (3), owners and operators of "hazardous waste management units" must have either: (1) applied for interim status; or (2) applied for and received a permit to treat, store or dispose of hazardous waste, without which they are prohibited from treating, storing or disposing of hazardous waste. *See* NR 670.001(3) and 40 C.F.R. §§ 270.1 and 270.71.

68. Pursuant to NR 662.034(1) - (3), and subject to certain exceptions, a generator of hazardous waste may accumulate hazardous waste on-site for 90 days or less without having a permit or interim status, provided that the generator complies with all applicable conditions set forth in NR 662.034(1) - (3), including requirements for owners and operators in NR 665.

69. A large quantity generator who accumulates hazardous waste for more than 90 days is an operator of a storage facility and is subject to the requirements of NR 670 unless the generator has been granted an extension to the 90-day period. Storage for more than 90 days subjects the generator of hazardous waste to the requirement to either obtain a permit or achieve interim status. *See* NR 662.034(2) and 40 C.F.R. § 262.17(b).

70. Similarly, the failure to comply with any of the conditions of NR 662.034(1) - (3) subjects a large quantity generator of hazardous waste to the requirements of NR 664-665, and the permit requirements of NR 670t.

71. Many large quantity generator conditions for a license exemption are also independently violable requirements that apply to TSDFs. When a hazardous waste generator that is also a TSDF fails to comply with a condition in NR 662.034 that is incorporated from a TSDF requirement in NR 665, the generator not only violates NR 670.001(3), and 670.010(1) and (4), but also simultaneously violates the incorporated TSDF requirement that corresponds with the condition for a license exemption.

72. In order for a generator of hazardous waste to maintain its exemption from the requirement to have an operating permit or interim status, it must clearly mark each container holding hazardous waste with the date upon which each period of accumulation begins. *See* NR 670.034(1)(b).

73. At the time of the inspection, Respondent failed to label twelve 55-gallon drums of retorted sludge stored in the 90-day accumulation area with the date upon which each period of accumulation began.

74. Respondent's failure to label containers of hazardous waste with an accumulation start date violated NR 670.034(1)(b).²

Count 2: Failure to Properly Label Hazardous Waste Containers

75. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

76. In order for a large quantity generator of hazardous waste to maintain its exemption from the requirement to have an operating permit or interim status it must, *inter alia*, label or mark each container holding hazardous waste with the words "Hazardous Waste." See NR 662.034(1)(c).

77. At the time of the inspection, Respondent failed to label three drums of hazardous waste in a licensed storage area with the words "Hazardous Waste."

78. Respondent's failure to label containers of hazardous waste in a licensed storage area violated NR 662.034(1)(c).³

² On December 6, 2023, Respondent provided photographic evidence to U.S. EPA showing that it had properly labeled the twelve 55-gallon drums of retorted sludge stored in the 90-day accumulation area with the required dates. On September 9, 2024, Respondent notified U.S. EPA that its employees had been retrained on labeling requirements for the Facility.

³ On December 6, 2023, Respondent provided photographic evidence to U.S. EPA showing it had properly labeled, removed from storage, and processed the three drums of hazardous waste. On September 9, 2024, Respondent notified U.S. EPA that its employees had been retrained on labeling requirements for the Facility.

Count 3: Failure to Store Waste in Proper Containers

79. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

80. An owner and operator of a TSDF managing a hazardous waste listed in NR 661 must obtain a state-issued operating license. *See* NR 670.001

81. An owner and operator of a TSDF is subject to the requirements of NR 664 and its state-issued TSDF operating licenses, including all conditions established pursuant to NR 670.030-033. *See* NR 664.0001(2).

82. Any non-compliance with a condition of an in-effect TSDF operating license constitutes a RCRA violation and is grounds for enforcement action. *See* NR 670.030(1) and 40 C.F.R. 270.30(a).

83. As an operator of a TSDF, at all times relevant to this CAFO, Respondent was subject to the requirements of NR 664 and all conditions set forth in the September 4, 2015 State of Wisconsin issued Final Determination Feasibility and Plan of Operation Report renewing licenses 4585 and 6008 (collectively “Respondent’s Licenses”). *See* NR 670.030(1) and “Conditions of Approval 1 and 4” of Respondent’s Licenses.

84. As incorporated into Respondent’s Licenses by “Conditions of Approval 4,” NR 670.030(1) requires that Respondent shall comply with all conditions of Respondent’s Licenses.

85. “Conditions of Approval 1” requires that Respondent operate the storage and treatment Facility in accordance with Respondent’s Licenses, the requirements of Ch. 291, Wis. Stats., NR 660 to 670, and the Conditions of Approval set forth therein.

86. “Conditions of Approval, Containers 29” in Respondent’s State of Wisconsin License Number 6008 requires Respondent to “store waste in a structurally sound (undamaged) United States Department of Transportation (DOT) approved containers.”

87. At the time of the inspection, PCB waste at the Facility was stored in a bucket with sucked in sides, rendering it structurally unsound and damaged.

88. Respondent’s failure to store waste in undamaged containers violated “Conditions of Approval, Containers 29” in Respondent’s State of Wisconsin License Number 6008.⁴

Count 4: Failure to Store Hazardous Waste in Closed Containers

89. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

90. An owner and operator of a TSDF is subject to the requirements of NR 664 and its state-issued TSDF operating licenses, including all conditions established pursuant to NR 670.030-033. *See* NR 664.0001(2).

91. Any non-compliance with a condition of an in-effect TSDF operating license constitutes a RCRA violation and is grounds for enforcement action. *See* NR 670.030(1) and 40 C.F.R. 270.30(a).

92. As an operator of a TSDF, at all times relevant to this CAFO, Respondent was subject to the requirements of NR 664 and all conditions set forth in the September 4, 2015

⁴ On December 6, 2023, Respondent provided photographic evidence to U.S. EPA showing the bucket of PCB waste had been repacked. On September 9, 2024, Respondent notified U.S. EPA that it had performed routine inspections on all its containers and it had repackaged the PCB waste into a structurally sound container.

State of Wisconsin issued Final Determination Feasibility and Plan of Operation Report
Respondent's Licenses. See NR 670.030(1) and "Conditions of Approval 1 and 4" of
Respondent's Licenses.

93. As incorporated into Respondent's Licenses by "Conditions of Approval 4," NR
670.030(1) requires that Respondent shall comply with all conditions of Respondent's Licenses.

94. "Conditions of Approval 1" requires that Respondent operate the storage and
treatment Facility in accordance with Respondent's Licenses, the requirements of Ch. 291, Wis.
Stats., NR 660 to 670, and the Conditions of Approval set forth therein.

95. "Conditions of Approval, Containers 37," in Respondent's State of Wisconsin
License Number 6008, requires Respondent to ensure containers are "covered/closed except
when adding or removing wastes."

96. At the time of the inspection, one container of laboratory waste at the Facility was
open when not adding or removing wastes.

97. Respondent's failure to store waste in covered or closed containers violated
"Conditions of Approval, Containers 37" in Respondent's State of Wisconsin License Number
6008.⁵

Count 5: Failure to Perform Annual Stormwater Sampling

98. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set
forth in this paragraph.

⁵ On December 6, 2023, Respondent provided photographic evidence to U.S. EPA showing the container of
laboratory waste had been removed and stating that henceforth, Respondent would place the laboratory waste
directly into the appropriate container.

99. An owner and operator of a TSDF is subject to the requirements of NR 664 and its state-issued TSDF operating licenses, including all conditions established pursuant to NR 670.030-033. *See* NR 664.0001(2).

100. Any non-compliance with a condition of an in-effect TSDF operating license constitutes a RCRA violation and is grounds for enforcement action. *See* NR 670.030(1) and 40 C.F.R. 270.30(a).

101. As an operator of a TSDF, at all times relevant to this CAFO, Respondent was subject to the requirements of NR 664 and all conditions set forth in the September 4, 2015 State of Wisconsin issued Final Determination Feasibility and Plan of Operation Report renewing Respondent's Licenses. *See* NR 670.030(1) and "Conditions of Approval 1 and 4" of Respondent's Licenses.

102. As incorporated into Respondent's Licenses by "Conditions of Approval 4," NR 670.030(1) requires that Respondent shall comply with all conditions of Respondent's Licenses.

103. "Conditions of Approval 1" requires that Respondent operate the storage and treatment Facility in accordance with Respondent's Licenses, the requirements of Ch. 291, Wis. Stats., NR 660 to 670, and the Conditions of Approval set forth therein.

104. "Conditions of Approval, Routine Mercury Monitoring 66," of Respondent's State of Wisconsin License Number 4585, requires Respondent to collect an annual sample from the stormwater in the retention basin on its property and test it for mercury.

105. Respondent did not complete this sampling requirement in 2022.

106. Respondent's failure to collect a stormwater sample and test it for mercury in 2022 violated Respondent's State of Wisconsin License Number 4585, Conditions of Approval, Routine Mercury Monitoring 66.⁶

Count 6: Failure to Follow Waste Analysis Plan

107. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

108. An operator of a TSDF is subject to the requirements of NR 664 and its state-issued operating licenses, including all conditions established pursuant to NR 670.030-033. *See* 664.0001(2).

109. Any non-compliance with a condition of an in-effect TSDF operating license constitutes a RCRA violation and is grounds for enforcement action. *See* NR 670.030(1) and 40 C.F.R. 270.30(a).

110. As an operator of a TSDF, at all times relevant to this CAFO, Respondent was subject to the requirements of NR 664 and all conditions set forth in the September 4, 2015 State of Wisconsin issued Final Determination Feasibility and Plan of Operation Report renewing Respondent's Licenses. *See* NR 670.030(1) and "Conditions of Approval 1 and 4" of Respondent's Licenses.

111. As incorporated into Respondent's Licenses by "Conditions of Approval 4," NR 670.030(1) requires that Respondent shall comply with all conditions of Respondent's Licenses.

⁶ On September 9, 2024, Respondent notified U.S. EPA that it had conducted storm water sampling during 2023 and 2024.

112. “Conditions of Approval 1” requires that Respondent operate its storage and treatment Facility in accordance with Respondent’s Licenses, the requirements of Ch. 291, Wis. Stats., NR 660 to 670, and the Conditions of Approval set forth therein.

113. “Conditions of Approval, Waste Analysis 73” of Respondent’s State of Wisconsin License Number 6008, requires Respondent to “. . . analyze each waste stream in accordance with the waste analysis procedures set forth in the waste analysis plan listed in section 6 of the [Feasibility and Plan of Operation Report (FPOR)].”

114. The Waste Analysis Plan (WAP) in the FPOR requires that, “. . . each waste shipment that passes initial inspection is sampled and screened (excluding lab packs).”

115. The WAP in the FPOR also requires for mercury containing articles, devices, and debris; universal lamps; universal batteries, and computer equipment:

[w]hen a representative sample is taken, it will be collected from 10% of the number of drums per waste stream, composited, and screened for key parameters. If less than 15 drums per waste stream is received, then a minimum of two (2) drums will be sampled.

116. At the time of the inspection, an authorized representative of Respondent stated that, while liquids over 5-gallons are sampled, Respondent mainly samples bulk liquids. The only other waste sampled by the Respondent is waste where analytical information is not received prior to receipt of the waste at the Facility.

117. Respondent also stated in its September 9, 2024 correspondence to U.S. EPA that, when appropriate, Veolia samples 10% of waste streams received at the Facility, excluding certain waste streams (*i.e.*, mercury containing articles, devices, debris, universal waste lamps, universal waste batteries, and computer equipment) and lab packs.

118. Respondent's failure to analyze each waste stream in accordance with the WAP violated its Wisconsin License Number 6008, Conditions of Approval, Waste Analysis 73.

Count 7: Failure to Maintain an Updated Contingency Plan

119. Complainant incorporates paragraphs 1 through 64 of this CAFO as though set forth in this paragraph.

120. Wis. Admin. Code NR 662.034(1)(d), 664.0052(1) and (4), 665.0053(4) and 665.0054(4) require that a large quantity generator and owner/operator of a TSDF must prepare a contingency plan that lists the names, addresses, and phone numbers of all persons qualified to act as emergency coordinator for the Facility and to update the plan when the emergency coordinators change.

121. At the time of the inspection, Respondent's contingency plan listed an individual as an emergency coordinator and an individual as technical support who no longer were employed in those positions.

122. Respondent's failure to maintain an updated contingency plan violated NR 662.034(1)(d), 664.0052(1) and (4), 665.0053(4) and 665.0054(4).⁷

Civil Penalty

123. Pursuant to Section 3008(a)(3) of RCRA, 42 U.S.C. § 6928(a)(3), Complainant determined that an appropriate civil penalty to settle this action is \$53,550. In determining the

⁷ On September 9, 2024, Respondent notified U.S. EPA that it had updated the contingency plan and associated table to delineate the emergency contacts at the Facility. Respondent also submitted a Class 1 permit modification to WDNR. Upon receiving WDNR's approval, Respondent distributed the new plan to all interested parties.

penalty amount, Complainant took into account the seriousness of the violation and any good faith efforts to comply with the applicable requirements. Complainant also considered U.S. EPA's RCRA Civil Penalty Policy, dated June 23, 2003.

124. Respondent agrees to pay a civil penalty in the amount of \$53,550 (Assessed Penalty) within 30 days after the date the Final Order ratifying this Agreement is filed with the Regional Hearing Clerk (Filing Date).

125. Respondent shall pay the Assessed Penalty and any interest, fees, and other charges due using any method, or combination of appropriate methods, as provided for on the U.S. EPA website: <https://www.epa.gov/financial/makepayment>. For additional instructions see <https://www.epa.gov/financial/additional-instructions-making-payments-epa>.

126. When making a payment, Respondent shall:

- a. Identify every payment with Respondent's name and the docket number of this Agreement, RCRA-05-2026-0013,
- b. Concurrent with any payment or within 24 hours of any payment,

Respondent shall serve proof of such payment to the following persons:

Regional Hearing Clerk
U.S. Environmental Protection Agency, Region 5
r5hearingclerk@epa.gov

Shawn Cole
Land Enforcement and Compliance Assurance Branch
U.S. Environmental Protection Agency, Region 5
Cole.Shawn@epa.gov and
R5LECAB@epa.gov

John Matson
Office of Regional Counsel
U.S. Environmental Protection Agency, Region 5
Matson.John@epa.gov

U.S. Environmental Protection
Agency Cincinnati Finance Center
Via electronic mail to:
CINWD_AcctsReceivable@epa.gov

“Proof of payment” means, as applicable, a copy of the confirmation of credit card or debit card payment, or confirmation of wire or automated clearinghouse transfer, and any other information required to demonstrate that payment has been made according to U.S. EPA requirements, in the amount due, and identified with the appropriate docket number and Respondent’s name.

127. Interest, Charges, and Penalties on Late Payments. Pursuant to 31 U.S.C. § 3717, 31 C.F.R. § 901.9, and 40 C.F.R. § 13.11, if Respondent fails to timely pay the full amount of the Assessed Penalty per this Agreement, U.S. EPA is authorized to recover, in addition to the amount of the unpaid Assessed Penalty, the following amounts.

- a. Interest. Interest begins to accrue from the Filing Date. If the Assessed Penalty is paid in full within 30 days, interest accrued is waived. If the Assessed Penalty is not paid in full within 30 days, interest will continue to accrue until any unpaid portion of the Assessed Penalty as well as any interest, penalties, and other charges are paid in full. To protect the interests of the United States the rate of interest is set at the IRS standard underpayment rate, any lower rate would fail to provide

Respondent adequate incentive for timely payment.

- b. Handling Charges. Respondent will be assessed monthly a charge to cover U.S. EPA's costs of processing and handling overdue debts. If Respondent fails to pay the Assessed Penalty in accordance with this Agreement, U.S. EPA will assess a charge to cover the costs of handling any unpaid amounts for the first 30 day period after the Filing Date. Additional handling charges will be assessed every 30 days, or any portion thereof, until the unpaid portion of the Assessed Penalty as well as any accrued interest, penalties, and other charges are paid in full.
- c. Late Payment Penalty. A late payment penalty of six percent (6%) per annum, will be assessed monthly on all debts, including any unpaid portion of the Assessed Penalty, interest, penalties, and other charges, that remain delinquent more than 90 days. Any such amounts will accrue from the Filing Date.

128. Late Penalty Actions. In addition to the amounts described in the prior Paragraph, if Respondent fails to timely pay any portion of the Assessed Penalty, interest, or other charges and penalties per this Agreement, U.S. EPA may take additional actions. Such actions U.S. EPA may take include, but are not limited to, the following.

- a. Refer the debt to a credit reporting agency or a collection agency, per 40 C.F.R. §§ 13.13 and 13.14.
- b. Collect the debt by administrative offset (i.e., the withholding of money payable by the United States government to, or held by the United

States government for, a person to satisfy the debt the person owes the United States government), which includes, but is not limited to, referral to the Internal Revenue Service for offset against income tax refunds, per 40 C.F.R. Part 13, Subparts C and H.

- c. Suspend or revoke Respondent's licenses or other privileges, or suspend or disqualify Respondent from doing business with U.S. EPA or engaging in programs U.S. EPA sponsors or funds, per 40 C.F.R. § 13.17.
- d. Refer this matter to the United States Department of Justice for litigation and collection pursuant to 40 C.F.R. § 13.33.

129. Allocation of Payments. Pursuant to 31 C.F.R. § 901.9(f) and 40 C.F.R. § 13.11(d), a partial payment of debt will be applied first to outstanding handling charges, second to late penalty charges, third to accrued interest, and last to the principal that is the outstanding Assessed Penalty amount.

130. Tax Treatment of Penalties. Penalties, interest, and other charges paid pursuant to this Agreement shall not be deductible for purposes of federal taxes.

131. Pursuant to 26 U.S.C. § 6050X and 26 C.F.R. § 1.6050X-1, U.S. EPA is required to send to the Internal Revenue Service (IRS) annually, a completed IRS Form 1098-F (Fines, Penalties, and Other Amounts) with respect to any court order or settlement agreement (including administrative settlements), that require a payor to pay an aggregate amount that U.S. EPA reasonably believes will be equal to, or in excess of, \$50,000 for the payor's violation of any law or the investigation or inquiry into the payor's potential violation of any law, including amounts paid for "restitution or remediation of property" or to come "into

compliance with a law.” U.S. EPA is further required to furnish a written statement, which provides the same information provided to the IRS, to each payor (i.e., a copy of IRS Form 1098-F). Failure to comply with providing IRS Form W-9 or Tax Identification Number (TIN), as described below, may subject Respondent to a penalty, per 26 U.S.C. § 6723, 26 U.S.C. § 6724(d)(3), and 26 C.F.R. § 301.6723-1. In order to provide U.S. EPA with sufficient information to enable it to fulfill these obligations, U.S. EPA herein requires, and Respondent herein agrees, that:

- a. Respondent shall complete an IRS Form W-9 (“Request for Taxpayer Identification Number and Certification”), which is available at <https://www.irs.gov/pub/irs-pdf/fw9.pdf>;
- b. Respondent shall therein certify that its completed IRS Form W-9 includes Respondent’s correct TIN or that Respondent has applied and is waiting for issuance of a TIN;
- c. Respondent shall email its completed Form W-9 to Milton Wise at U.S. EPA’s Cincinnati Finance Center at wise.milton@epa.gov, within 30 days after the effective date of this CAFO, and U.S. EPA recommends encrypting IRS Form W-9 email correspondence; and
- d. In the event that Respondent has certified in its completed IRS Form W-9 that it does not yet have a TIN but has applied for a TIN, Respondent shall provide U.S. EPA’s Cincinnati Finance Center with Respondent’s TIN, via email, within five days of Respondent’s receipt of a TIN issued by the IRS.

General Provisions

132. The parties consent to service of this CAFO by e-mail at the following valid e-mail addresses: Matson.John@epa.gov (for Complainant), and Matthew.Scudder@veolia.com and rkemper@thompsoncoburn.com (for Respondent). Respondent understands that the CAFO will become publicly available upon filing.

133. This CAFO resolves only Respondent's liability for federal civil penalties for the violations alleged in this CAFO.

134. This CAFO does not affect the right of U.S. EPA or the United States to pursue appropriate injunctive or other equitable relief or criminal sanctions for any violations of law.

135. This CAFO does not affect Respondent's responsibility to comply with RCRA and other applicable federal, state, local laws or permits.

136. Respondent certifies that it is complying fully with RCRA, 42 U.S.C. §§ 6901–6992k, and the regulations at NR 660–679.

137. This CAFO is a "final order" for purposes of 40 C.F.R. § 22.31, U.S. EPA's RCRA Civil Penalty Policy, and U.S. EPA's Hazardous Waste Civil Enforcement Response Policy (December 2003).

138. The terms of this CAFO bind Respondent, its successors, and assigns.

139. Each person signing this agreement certifies that he or she has the authority to sign for the party whom he or she represents and to bind that party to its terms.

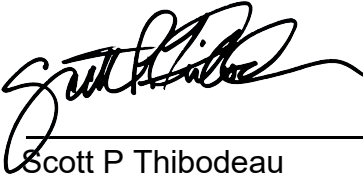
140. Each party agrees to bear its own costs and attorney's fees in this action.

141. This CAFO constitutes the entire agreement between the parties.

Veolia ES Technical Solutions, LLC, Respondent

02/24/2026

Date



Scott P Thibodeau

Veolia ES Technical Solutions, LLC

General Manager

In the Matter of: Veolia ES Technical Solutions, LLC

Docket No. RCRA-05-2026-0013

United States Environmental Protection Agency, Complainant

**CAROLYN
PERSOON**

Digitally signed by CAROLYN
PERSOON
Date: 2026.03.18 12:39:42
-05'00'

Carolyn Persoon
Division Director
Enforcement and Compliance Assurance Division
United States Environmental Protection Agency, Region 5

In the Matter of:
Veolia ES Technical Solutions, LLC
Docket No. RCRA-05-2026-0013

Final Order

This Consent Agreement and Final Order, as agreed to by the parties, shall become effective immediately upon filing with the Regional Hearing Clerk. This Final Order concludes this proceeding pursuant to 40 C.F.R. §§ 22.18 and 22.31. IT IS SO ORDERED.

ANN COYLE

Digitally signed by ANN COYLE
Date: 2026.03.23 10:00:19
-05'00'

Ann L. Coyle
Regional Judicial Officer
United States Environmental Protection Agency
Region 5